

pleadings, they are either not legal positions, or were a mistake. The Court agrees. Nothing in the pleadings directly admit that the pipeline here serves a public purpose.

Many of the “additional facts” are immaterial. For example, the specific experience of Amber Sarkari (EBMUD witness) (Fact No. 18), or whether she testified that “eminent domain” is interchangeable with “condemnation” (Fact No. 20), or whether EBMUD maintains the pipeline (Fact No. 47) are not facts directly relevant to whether the pipeline serves a public purpose.

To the extent that plaintiffs highlight the uncertainty surrounding whether the 1940s negotiations involved the “threat” of eminent domain, this is speculation. (See, e.g., Additional Material Fact Nos. 21-23, 31 [argument re inability of Amber Sarkari to testify about 1940s negotiations]; *Aguilar, supra*, 25 Cal.4th at 864 [speculation is not evidence]; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 105-106 [what witness testifies to in a deposition is not a “material fact”].)

Given that plaintiffs do not successfully meet their burden to show material disputes of fact, the motion must be granted.

12. 9:00 AM CASE NUMBER: MSN13-1889
CASE NAME: RE 316 CALLE LA MONTANA, MORAGA, CA
HEARING ON PETITION IN RE: PETITION RE: UNRESOLVED CLAIM AND DEPOSIT OF SURPLUS PROCEEDS OF TRUSTEE'S ASALE
FILED BY:
TENTATIVE RULING:

The hearing on the distribution of surplus funds is continued to April 10, 2026 at 9:00 a.m.

This matter was scheduled for hearing on the distribution of surplus funds following the sale of the property described as Legal Lot Unit 12, Subdivision 3876, Book 126, Page 8 Contra Costa County Records Assessor's Parcel Number 255-602-001. The Court did not receive any claims for the surplus funds. It appears that not all of the potential claimants were notified of the hearing.

Accordingly, the hearing is continued to allow for the clerk to serve notice on all potential claimants. The clerk is directed to send an updated Notice of Order Depositing Surplus Funds and Notice of Hearing with the new hearing date, plus a copy of this Order, to all addresses listed in the Affidavit of Mailing.

The hearing is continued pursuant to Court's motion to April 10, 2026 at 9:00 a.m. before Judge Joni Hiramoto.

Discovery Law & Motion

Continued on Next Page